Policy: 3241
Section: 3000 – Students

(DRAFT 03-30-21)

PROPOSED POLICY REVISIONS

Information Item

Rationale: Recent revisions to state discipline law resulted in comprehensive changes to the Office of Superintendent of Public Instruction (OSPI) rules governing student discipline. In addition to eliminating zero-tolerance discipline policies, the legislative revisions and OSPI rules require districts to use proactive, instructional and restorative approaches to manage behavior while keeping students in school to the maximum extent possible.

The district's policy is revised to update language and emphasize that positive and proactive approaches to manage student behavior are the norm, rather than the exception. Further, the policy clarification emphasizes that training materials must focus on elimination of punitive approaches and exclusionary practices and exclusion should only be considered as a last resort.

Specially, the policy is updated to align with WAC 392-400-110 requiring the district:

1. Develop and periodically review discipline policies and procedures with the participation of school personnel, students, parents, families, and the community;
2. Use disaggregated data in its development and review of discipline policies;
3. Monitor the impact of the district's policies, procedures, and practices;
4. Ensure discipline policies and procedures improve fairness and equity in the administration of discipline; and
5. Ensure employees and contractors are knowledgeable of discipline policies and procedures.

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Student Discipline

I. Definitions and Purpose

A. "Discipline" means any classroom exclusion, suspension, expulsion, or emergency expulsion ~~action~~ taken by the school district in response to ~~inappropriate behavior~~behavioral violations. ~~, including positive behavior interventions and restorative practices. Discipline is not necessarily punitive, but can take positive and supportive forms such as interventions. Data shows that a supportive response to inappropriate behavior is more effective and increases equitable educational opportunities.~~

B. "Other Forms of Discipline" means any action~~s~~ used in response to ~~problem behaviors~~behavioral violations and inappropriate behaviors~~,~~ other than classroom exclusion, suspension, expulsion, or emergency expulsion. This includes positive behavior interventions, restorative practices, and other best practices and strategies identified by the district or included in the state menu for behavior developed under RCW 28A.165.035.

C. The board intends that this policy and procedure be implemented in a manner the supports positive school climate, maximizes instructional time, and increases equitable educational opportunities. ~~The~~ In addition, the purposes of this policy and accompanying procedure include:

1. Engaging with school personnel, students, parents/guardians, families, and the community in decisions related to the development and implementation of discipline policies and procedures~~and striving to understand and be responsive to cultural context~~;

2. Supporting students in meeting behavioral expectations, including providing for early involvement of parents/guardians;

3. Administering discipline in ways that respond to the needs and strengths of students and keep students in the classroom to the maximum extent possible;

4. Providing educational services that students need during suspension and expulsion;

~~4.~~5. Proactively implement discipline practices that support students in meeting behavioral expectations without losing access to education;

~~5.~~6. Facilitating collaboration between school personnel, students, ~~and~~ parents/guardians, and families to~~, and thereby~~ support~~ing~~ successful reentry into the classroom following a suspension or expulsion;

~~6.~~7. ~~Ensuring~~ Providing fairness, equity, and due process in the administration of discipline;

~~7.~~8. ~~Providing~~ Implementing culturally responsive discipline that provides every student ~~with~~ the opportunity to achieve personal and academic success; and

~~8.~~9. Providing a safe environment for all students and district employees.

~~D.~~A. ~~The superintendent or his designee will establish and make available student conduct rules, designed to provide students with a safe, healthy, and an educationally sound environment. Students are expected to be aware of the district's rules of student conduct, including behavior standards that respects the rights, person, and property of others. Students and staff will work together to develop a positive climate for learning.~~

II. Rights and Responsibilities

A. The District will observe students' fundamental rights and will administer discipline in a manner that does not:

1. Unlawfully discriminate against a student on the basis of sex, race, creed, religion, color, national origin, sexual orientation, gender expression, gender identity, disability, or any other protected status;

2. Deprive a student of the student's constitutional rights; or

3. Unlawfully interfere in a student's pursuit of an education or unlawfully deprive a student of equal educational opportunity.

B. The district's discipline policy and procedure is ~~superintendent or his designee will establish and make available student conduct rules,~~ designed to provide students with a safe, healthy, and an educationally sound environment. Students are expected to be aware of and comply with this policy and procedure~~the district's rules of student conduct~~, including behavioral expectations ~~standards~~ that respects the rights, person, and property of others. Students are also expected to pursue the

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required course of studies. Students and staff will work together to develop a positive climate for learning.

The district will take steps to make district employees and individuals who contract with the district add have contact with student'-s knowledgeable of the district's discipline policies and procedures.

C.

~~**II. Minimizing Exclusion, Engaging with Families, and Supporting Students**~~

~~A. Unless a student's presence poses an immediate and continuing danger to others or an immediate and continuing threat to the educational process, staff members must first attempt one or more "other forms of discipline" to support students in meeting behavioral expectations before imposing classroom exclusion, short-term suspension, or in-school suspension. Before imposing a long-term suspension or expulsion, the district must first consider "other forms of discipline".~~

~~B. Before administering any suspension or expulsion, the district will consider the student's individual circumstances and the nature and circumstances of the inappropriate behavior to determine whether the suspension or expulsion, and the length of the exclusion, is warranted.~~

~~C. "Other forms of discipline" may involve the use of best practices and strategies included in the state menu for behavior developed under RCW 28A.165.035. The district's procedure identifies a list of potential "other forms of discipline" for staff use. However, staff members are not restricted to that list and may use any other forms of discipline compliant with the state rules in WAC 392-400-025(9).~~

~~D. School personnel will make every reasonable attempt to involve parents and students in resolving patterns of inappropriate behavior. Staff will strive for effective communication with parents, early involvement of parents in responding to behavior concerns and culturally responsive and respectful engagement of parents. The district will provide language assistance to ensure that associated notices, hearings, conferences, meetings, plans, proceedings, agreements, petitions, and decisions are in a language that students and parents understand. Language assistance includes oral and written communication and further includes assistance to understand written communication. The district's use of suspension and expulsion will have a real and substantial relationship to the lawful maintenance and operation of the school district, including but not limited to, the preservation of the health and safety of students and employees and the preservation of and educational process that is conducive to learning.~~

~~E. As described in the procedures, the district will offer educational services to students during suspension or expulsion. The educational services will include clear student expectations, and appropriate staff supervision. When the district administers a long-term suspension or expulsion, the district will hold a timely reengagement meeting and collaborate with parents and students to develop a reengagement plan that is tailored to the student's individual circumstances, in order to return the student to school successfully. Additionally, any student who has been suspended or expelled may apply for readmission at any time.~~

~~**III. Staff Authority**~~

~~District staff members are responsible for supervising students during the school day, during school activities, whether on or off campus, and on the school bus. Staff members will seek early involvement of parents in efforts to support students in meeting behavioral expectations. The superintendent or designee has general authority to administer discipline, including all exclusionary discipline. The superintendent will identify, in the procedure, other staff members~~

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~~to whom the superintendent has designated disciplinary authority. After attempting at least one other form of discipline, teachers have statutory authority to impose classroom exclusion for behaviors that disrupt the educational process. Because perceptions of subjective behaviors vary and include implicit or unconscious bias, the accompanying procedure provides examples of types of behaviors for which the identified district staff may administer discipline.~~

~~**IV. Ensuring Fairness, Providing Notice, and an Opportunity for a Hearing**~~

~~A. When administering discipline, the district will observe all of the student's constitutional rights. The district will notify parents as soon as reasonably possible about classroom exclusion and before administering any suspension or expulsion.~~

~~B. The district will provide an initial hearing with the student for the purpose of hearing the student's perspective. At an initial hearing, for short term and in school suspensions, the school administrator will provide an opportunity for the student to contact parents. At an initial hearing, for a long-term suspension and expulsion, the principal will make a reasonable attempt to contact parents.~~

~~C. The district will provide parents with written notice, consistent with the law in WAC 392-400-455, of a suspension or expulsion no later than one (1) school business day following the initial hearing. As stated above, language assistance includes oral and written communication and further includes assistance to understand written communication.~~

~~D. The district procedures establish the review and appeal processes for suspensions, expulsions, and emergency expulsions, consistent with WAC 392-400-430 through 392-400-530~~

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~~E. The district's procedures address grievances of parents or students related to "other forms of discipline", classroom exclusion, and exclusion from transportation or extra-curricular activity. The grievance producers include an opportunity for the student to share his or her perspective and explanation regarding the inappropriate behavior.~~

III~~V~~.Development and Review

The District, with the participation of school personnel, students, parents, families, and the community, will:

A. Establish behavioral expectations with students and proactively teacher expectations across school settings;

B. Develop definitions for behavioral violations to address differences in perceptions of subjective behaviors and improve consistency in disciplinary practices;

C. Define the differences between minor and major behavior violations to clarify the types of violations that may or may not result in classroom exclusion or are severe enough that an administrator may be involved;

D. Identify a continuum of best practices and strategies for classroom-based responses that building staff should administer before or instead of classroom exclusion to support students in meeting behavioral expectations.

E. Periodically review and further develop this policy and procedure. As part of this development and review process, the district will use disaggregated data collected under RCW 28A.300.042 to

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monitor the impact of the district's discipline policies, procedures, and practices and to improve fairness and equity in the administration of discipline

Accurate and complete reporting of all disciplinary actions, including the associated student-level information, behavioral violations, and other forms of discipline the district considered or attempted ~~inappropriate behavior that led to them~~, is essential for effective review of this policy.~~;~~ T~~t~~herefore, the district ~~will ensure such reporting. The district~~ will ~~periodically~~ collect and review data on disciplinary actions ~~taken against students~~administered in each school~~. The data will be disaggregated into subgroups~~, as required by RCW 28A.300.042, ~~including students who qualify for special education or Section 504~~and any additional data required under district policies and procedures~~4. The data review will~~, including data on~~e~~ classroom exclusion, in-school and short-term suspensions, ~~and~~ long-term suspensions, and expulsions. ~~The~~ One component~~purpose~~ of this~~e~~ data review is to determine if disciplinary disproportionality exists; if disciplinary disproportionality is found, the district will take necessary action to ensure that it is not the result of discrimination and may update this policy and procedure to improve fairness and equity regarding discipline.

The district requires that at least annually certificated building employees review the district's discipline policies and procedures. The district will support teachers and other school personnel in effectively implementing a continuum of other forms of discipline, including identified best practices and strategies, that:

A. Focus on prevention to reduce the use of exclusionary discipline practices;

B. Allow the exercise of professional judgment and skill sets; and

C. May be adapted to individual situations in a culturally responsive manner.

IV~~I~~. Distribution of Policies and Procedures

The ~~school~~ district will make its discipline policies and procedures available to families and the community. The district will annually provide its discipline policies and procedures to all district ~~personnel~~employees, students, and parents/guardians, and families, which may require language assistance for students and parents with limited English proficiency under Title VI of the Civil Rights Act of 1964. ~~The school district will ensure district employees and contracts are knowledgeable of the discipline policies and procedures.~~

V. Application

The superintendent will develop procedures to implement this policy in a manner consistent with WAC 392-400-010 et seq. This policy and accompanying procedure will be construed in a manner consistent with Washington law, as stated in WAC 392-400-020.

Legal References:	RCW 9.41.280~~RCW 9A.16.100~~ RCW 28A.150.240~~RCW 9.41.280~~ RCW 28A.225~~RCW 28A.150.240~~ ~~RCW 28A.225~~	RCW 28A.320 RCW 28A.400.100 RCW 28A.400.110 RCW 28A.600 RCW	WAC 392-190-048 WAC 392-400 34 CFR Part 100.3 42 U.S.C. 2000d et seq. Civil Rights Act of 1964

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